**BRENDAN NGEHSI NEWANFORBI**
Plaintiff, In Pro Per
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**UNITED STATES DISTRICT COURT**

**NORTHERN DISTRICT OF CALIFORNIA**

**OAKLAND DIVISION**

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| **BRENDAN NGEHSI NEWANFORBI,**<br><br>Plaintiff,<br><br>v.<br><br>AMAZON.COM SERVICES, LLC, a Delaware limited liability company; ACCURATE BACKGROUND LLC, a California limited liability company; and DOES 1-10, inclusive,<br><br>Defendants. | Case No. 4:26-cv-09249-ASK<br><br>**FIRST AMENDED COMPLAINT FOR DAMAGES**<br><br>(1) FCRA, 15 U.S.C. § 1681e(b)<br>(2) ICRAA, Civ. Code § 1786.20(b)<br>(3) FCRA, 15 U.S.C. § 1681b(b)(3)(A)<br>(4) ICRAA, Civ. Code § 1786.40(a)<br><br>Hon. Ajay S. Krishnan<br>**JURY TRIAL DEMANDED** |

## FIRST AMENDED COMPLAINT FOR DAMAGES

Plaintiff BRENDAN NGEHSI NEWANFORBI, appearing in pro per, alleges as follows. Allegations concerning Plaintiff's own acts and communications received by him are based on personal knowledge. Allegations concerning Defendants' internal systems, report transmissions, and decision-making are made on information and belief where expressly identified, based on the facts stated below.

## I. NATURE OF THE ACTION

1. This action concerns inaccurate identity information used in an employment background investigation and Amazon's removal of Plaintiff's selected employment shift without the reporting and notice procedures alleged below. Accurate Background LLC's report attributed the name NEWANSORBI to Plaintiff as information he had supplied. Plaintiff never supplied or used that name. Accurate's disclosed records show that the name was used in searches and transmitted as a principal name to a criminal-record vendor, rather than appearing only as a typographical error on the final report.

2. Plaintiff separately challenges Amazon's loss of his particular employment opportunity without a pre-adverse-action report and rights summary, and without the state-law advice required after a qualifying denial. The Amazon claims allege report-based action on information and belief. Plaintiff does not allege that a completed October report existed in July or that an ordinary processing delay, standing alone, violates the statutes asserted here.

## II. JURISDICTION AND VENUE

3. This Court has federal-question jurisdiction under 28 U.S.C. § 1331 and 15 U.S.C. § 1681p over the Fair Credit Reporting Act claims. It has supplemental jurisdiction under 28 U.S.C. § 1367 over the related California claims, which arise from the same employment screening and hiring events.

4. Venue is proper under 28 U.S.C. § 1391(b)(2). A substantial part of the events occurred in Alameda County, including the pre-hire appointment and the employment opportunity at Amazon's Fremont facility. Assignment to the Oakland Division is appropriate under Civil Local Rule 3-2(d).

## III. PARTIES

5. Plaintiff BRENDAN NGEHSI NEWANFORBI is an individual who resided in San Joaquin County, California, when the employment events began. He is a consumer within the meaning of 15 U.S.C. § 1681a(c) and Civil Code § 1786.2(b).

6. Defendant AMAZON.COM SERVICES, LLC (Amazon) is a Delaware limited liability company doing business in California. Amazon offered Plaintiff employment as a Seasonal XL Warehouse Associate at 44051 Osgood Road, Fremont, California 94539. Amazon procured Plaintiff's background investigation for employment purposes and was the prospective employer and user of the resulting reporting information.

7. Defendant ACCURATE BACKGROUND LLC (Accurate) is a California limited liability company headquartered in Irvine, California. It regularly assembles or evaluates information about consumers for compensation and furnishes consumer reports to third parties, including employers, using interstate commerce. Accurate is a consumer reporting agency under 15 U.S.C. § 1681a(f) and an investigative consumer reporting agency under Civil Code § 1786.2(d).

8. Accurate identified itself to Plaintiff as a consumer reporting agency performing screening on Amazon's behalf. Its communications and file use the client designation Amazon Salesforce. Plaintiff alleges that this designation relates to the Amazon screening order at issue; he does not name it as a separate legal entity.

9. DOES 1-10 are included in the caption as in the original complaint. Their identities and particular involvement have not been established. Plaintiff presently asserts the numbered causes of action against the named defendant identified in each count and will seek leave to identify an additional responsible party if supported by evidence.

## IV. FACTUAL ALLEGATIONS

### A. The conditional offer and completed pre-hire steps

10. On July 3, 2026, Amazon emailed Plaintiff a conditional offer for the Seasonal XL Warehouse Associate position. The offered compensation began at $21.50 per hour, with the offer letter stating a range of $21.50 to $24.00 per hour, for approximately 19 hours per week on a seasonal basis.

11. The offer depended on successful completion of the background check, drug test, and other pre-hire activities. It identified training dates of July 28-29 and August 4-5, 2026. Plaintiff does not allege an unconditional guarantee of continued employment or a guaranteed seasonal duration.

12. The offer stated that Amazon could require selection of a new start date, location, or schedule if pre-employment requirements were not completed on time, background information was missing or incomplete, or training spots were no longer available. Plaintiff acknowledges those stated conditions.

13. Plaintiff completed the online Form I-9 process and attended the July 7, 2026 pre-hire appointment at the Fremont facility. Amazon emailed a completed-appointment confirmation at approximately 9:20 a.m. The checklist at that stage showed Drug Test complete, I-9 Verification complete, and Background Check pending.

### B. Accurate's July 7 order and use of NEWANSORBI

14. On July 7, 2026, Accurate sent Plaintiff an electronic-communication notification identifying Amazon Salesforce as the requesting company. A separate message concerning screening request 496623722 asked him to telephone and confirm identifying information,

including names, address history, date of birth, and Social Security number, and warned that a delayed response could delay screening.

15. Accurate also requested consent to text communications. Plaintiff replied START on July 17, ten days after the initial text request. That reply concerned text-message communications. Plaintiff does not allege that it proves when he supplied every other requested identifier or that he immediately answered the separate telephone-verification request.

16. Accurate's later file disclosure lists an Amazon request received July 7, 2026, and report Y94611404 for Amazon dated October 14, 2026. The July 7 entry establishes receipt of an order, not furnishing of a completed report to Amazon on that date.

17. The October 14 report included the AKA entry NGWA NFORBI, NEWANSORBI and labeled it Provided by Applicant. Plaintiff never provided NEWANSORBI, has never used it as a name, and did not authorize its attribution to him as applicant-supplied identity information.

18. The report separately listed other names, including NFORBI, BRENDAN as Provided by Applicant and NEWANFORBI, BRENDAN as Discovered through Address History. The existence of legitimate name variants did not make NEWANSORBI a name Plaintiff supplied or used.

19. The disclosed July 7 court-search receipts identify NEWANSORBI as a first name and NGWA NFORBI as a last name. Accordingly, the erroneous name was used in screening before July 27, not first introduced on the face of the October report.

20. The disclosed request to the Santa Clara criminal-record vendor likewise uses

NEWANSORBI in the principal first-name field and NGWA in the last-name field. It also includes additional AKA entries, including a correct BRENDAN NEWANFORBI variant. Plaintiff does not allege that Accurate searched only the erroneous name.

21. These records show repeated use of the same false identity attribution across the report and vendor-search process. On information and belief, Accurate's procedures accepted and propagated that attribution without reasonably reconciling it with Plaintiff's actual identity and the provenance of applicant-supplied information before preparing the report.

22. Whether the original erroneous input came from Amazon, another source, a mapping process, or a manual entry is within Defendants' records. Plaintiff does not allege that Accurate intentionally invented the name. Accurate's own preparation of an employment report attributing the name to Plaintiff is the accuracy failure asserted against Accurate.

**C. The July delay and loss of the selected shift**

23. On July 8, Amazon told Plaintiff that background checks at the relevant site were usually returned five days after submission. On July 12, Amazon said his application remained in progress. On July 17, Amazon said it was still waiting for background-check results from its third-party vendor. The five-day statement was an estimate, not a statutory deadline.

24. On July 27, 2026, at approximately 3:23 p.m., Plaintiff viewed Amazon's checklist. The background check still appeared as pending. The selected training shift no longer appeared; the portal instead stated that he did not have a shift selected and should select a new shift. This occurred one day before the anticipated July 28 start.

25. Plaintiff lost the particular July 28 employment and training opportunity described in his offer. He did not receive a copy of a consumer report or a written FCRA rights summary before that removal. Amazon did not communicate a denial accompanied by the reporting

agency's name and address as advice concerning that denial.

26. On information and belief, Amazon's removal of that specific opportunity was based at least in part on information communicated or made available through Accurate's screening process, rather than solely on the passage of time. This belief is based on the active Amazon-specific screening order, components completed before July 27, the continuing screening condition in Amazon's hiring workflow, and the removal of the selected shift while that condition remained unresolved. The precise contents and timing of any interim communication and Amazon's decision criteria are within Defendants' control.

27. Plaintiff recognizes that Amazon's messages said it was awaiting results and that the offer allowed rescheduling for incomplete screening or unavailable training spots. He does not characterize those messages as an admission that Amazon had received adverse information. His report-based-action allegation is an inference to be tested against the actual transmission and decision records, not an allegation that the October 14 completed report existed on July 27.

**D. The October report and the limits of the disclosed vendor evidence**

28. The October 14 report concerns Plaintiff's character and personal characteristics and was prepared for Amazon's employment screening. It is a consumer report under the FCRA and an investigative consumer report under ICRAA. On information and belief, Accurate furnished or made that report available to Amazon in connection with the identified Amazon order. The precise initial employer-transmission timestamp is within Accurate's records; the report date alone is not alleged as proof of that timestamp.

29. The Santa Clara criminal component is marked Record Found and completed October 14, 2026. The San Joaquin component is marked No Record Found and completed September 3, 2026. The package-review component is marked completed October 13. Plaintiff

does not infer an unlawful delay merely from the difference between those component dates.

30. The Santa Clara narrative includes RELEASED FROM PRISON ONTO PAROLE; CURRENTLY ON PAROLE next to a December 2, 2020 release entry. The disclosed text does not identify a separate current-status source or verification date for the latter assertion. Plaintiff does not allege in this complaint that his actual parole status was different or assert an accuracy claim based solely on that statement.

31. The raw San Joaquin disclosure contains three entries whose identification flags are true for date of birth and false for name and Social Security number. Those flags do not establish the full matching method or that the entries concern another person. Because the final component says No Record Found, Plaintiff does not allege that Accurate furnished those entries as three adverse convictions.

32. The disclosure identifies Infinity Court Research for San Joaquin, InformData - SJV for Santa Clara, and Tauxbe Data Inc. with NSOPW as the source associated with the sex-offender search. The National Sex Offender Database Search, 496623723, says No Record Found. A separate National Criminal Database Search, 496623727, says Completed.

33. These source identifications do not establish a positive registry hit, transmission of California registry information, or use of such information to deny Plaintiff employment. The claims pleaded here do not depend on those propositions. Plaintiff does not claim that omission of adverse information from a report caused an unfavorable report.

**E. Dispute, file disclosure, and correction**

34. On October 14, 2026, Plaintiff disputed the alias directly with Accurate. He explained that NEWANSORBI was not a name he had supplied or used, requested deletion and correction of the applicant attribution, and asked for the source and searches conducted

under that name. He also questioned the sex-offender search and requested his complete file and report-recipient information.

35. Accurate supplied a disclosure dated October 27. Its October 28 closing letter states that it received the dispute October 15, completed its reinvestigation, removed the disputed AKA, and forwarded a revised report to the requesting employer. The revised report contains an initiation entry dated October 19. Those are distinct dates reflecting different stated events.

36. The revised report omits the disputed alias and changes certain names-searched lists while retaining earlier completion dates. Plaintiff does not allege that unchanged dates prove that Accurate failed to investigate, falsified logs, or failed to rerun a particular search. The correction also does not erase the earlier preparation and use of the false attribution.

37. Accurate's letter states that no information was reported in the National Sex Offender Database Search. Plaintiff does not treat the negative result as proof that Accurate secretly reported a positive result. He does not plead an untimely-reinvestigation claim where Accurate's stated completion occurred within thirty days of either the October 14 submission or October 15 receipt.

**F. Concrete injury and separate causal periods**

38. The July employment injury is loss of the particular training and start opportunity, with associated earnings that would have begun at the offered hourly rate and approximately nineteen hours per week if the remaining conditions were satisfied. Plaintiff seeks compensation for work actually lost because of actionable conduct, subject to proof of duration, causation, and mitigation; he does not claim guaranteed annual wages from a seasonal conditional offer.

39. As to Amazon's alleged notice violations, Plaintiff was deprived of a meaningful opportunity before the July shift removal to review any reporting information on which Amazon acted, identify the false name already being used in the screening process, and present accurate identity information and an explanation before losing that particular opportunity. After obtaining the report, he actually disputed that same name, and Accurate removed it.

40. As to Accurate, the injury includes false attribution of an applicant-supplied identity in a criminal-background investigation prepared for a prospective employer and, on information and belief as alleged above, furnished to that employer. Attributing a different name to an applicant as a name he supplied can materially mislead a reader about his identity, the records searched, and the reliability of his application. Plaintiff does not allege that every harmless spelling error creates such an injury.

41. Plaintiff also spent time reviewing the inaccurate report, identifying the false alias, preparing the October 14 consumer dispute, and seeking correction of his employment-screening file. Those were steps to correct the screening information, apart from preparation of litigation papers. Plaintiff experienced anxiety, embarrassment, and humiliation from the false identity attribution in his employment screening and from the loss and uncertainty surrounding the particular job opportunity. He seeks only injury attributable to each Defendant's actionable conduct, not distress arising merely from accurate historical information.

42. Plaintiff does not allege that an October report retroactively caused the July shift removal. Any claim that Accurate's earlier use of the false alias contributed to the July loss depends on proof of the earlier screening communications and causal connection. The October accuracy and correction-related injuries are alleged separately from the July employment loss.

**G. Culpability**

43. Accurate's alleged failure was not confined to a single displayed spelling error: the same name was used in July search receipts, transmitted as a principal vendor-search name, and attributed to Plaintiff as applicant-supplied in an employment report months later. On information and belief, the repeated propagation reflects an unreasonable failure to check name provenance and reconcile inconsistent identity fields before reporting.

44. Plaintiff alleges reckless disregard, rather than intentional invention of a name, insofar as Accurate's reporting procedures allowed an unverified name to be affirmatively represented as applicant-supplied throughout that process. The objective risk is inaccurate identity attribution in criminal employment screening. Plaintiff alternatively alleges negligence if the procedures or conduct do not satisfy the willfulness standard.

45. As to Amazon, Plaintiff alleges on information and belief that the report-based shift-removal practice described above operated without providing the required pre-action report and rights summary. He seeks willfulness-based relief only to the extent the evidence establishes knowing or reckless use of that practice, and otherwise alleges negligence. Neither Defendant's participation in prior litigation is pleaded as an admission of liability or as a substitute for the culpability required here.

## V. FIRST CAUSE OF ACTION

**Inaccurate Consumer Reporting - 15 U.S.C. § 1681e(b)**

**Against Accurate Background LLC**

46. Plaintiff incorporates paragraphs 3-8, 10-22, 28-45 to the extent they concern Accurate's preparation, use, furnishing, correction, and resulting injury from inaccurate identity information.

47. Whenever Accurate prepared a consumer report concerning Plaintiff, § 1681e(b) required reasonable procedures to assure maximum possible accuracy of information concerning him. That obligation included reasonable procedures for accurately attributing the identities and applicant-supplied names stated in this employment report.

48. The report was inaccurate because it represented that NEWANSORBI was a name of Plaintiff supplied by him. He neither used nor supplied it. Its repeated use in searches and its applicant attribution materially misrepresented the identity information used to investigate Plaintiff for employment.

49. Accurate failed to follow reasonable accuracy procedures by accepting and propagating the name and source attribution without reasonably verifying its provenance and reconciling it with the available identity information before reporting. This procedural failure is alleged on information and belief based on the repeated records and contradictory identity fields described above, not on a theory of strict liability for any error.

50. The inaccurate report was prepared for Amazon's employment use and, on information and belief, furnished or made available to Amazon. The failure caused the reporting, correction-related, and emotional injuries described in paragraphs 40-42. Plaintiff seeks July lost earnings against Accurate only to the extent the earlier use or furnishing and resulting causal connection are established.

51. Accurate's noncompliance was willful, including reckless, as alleged in paragraphs 43-44. Plaintiff seeks actual or statutory damages and punitive damages as authorized by § 1681n. Alternatively, the noncompliance was negligent, and Plaintiff seeks actual damages caused by it under § 1681o, together with recoverable costs and attorney's fees to the extent legally available.

## VI. SECOND CAUSE OF ACTION

**Inaccurate Investigative Consumer Reporting - Civil Code § 1786.20(b)**

**Against Accurate Background LLC**

52. Plaintiff incorporates paragraphs 3-8, 10-22, 28-44 and 47-50 insofar as they concern Accurate's inaccurate identity reporting and resulting injury.

53. Accurate prepared an investigative consumer report concerning Plaintiff for employment at Amazon's California facility. The report contained criminal-background and identity information bearing on his character and personal characteristics. ICRAA coverage does not depend on obtaining that information through a personal interview.

54. Civil Code § 1786.20(b) required Accurate to follow reasonable procedures to assure maximum possible accuracy of information concerning Plaintiff. Accurate violated that duty through the false alias and applicant-source attribution and the unreasonable procedures alleged above. No separate report-retention violation is alleged.

55. The inaccurate identity attribution did not make Plaintiff's report more favorable. It falsely represented that he supplied another name for criminal screening and impaired the reliability of the identity information presented about him. Plaintiff does not base liability on excluded adverse records or demand recovery because a registry search returned a negative result.

56. Plaintiff seeks the individual remedy authorized by Civil Code § 1786.50(a), including actual damages or the statutory amount, whichever is greater, together with recoverable costs and legally available attorney's fees. Knowing noncompliance is not alleged as a prerequisite to that ordinary statutory remedy.

57. For the repeated and reckless accuracy failures alleged in paragraphs 43-44, Plaintiff also seeks punitive damages under Civil Code § 1786.50(b) if the violation is determined to be grossly negligent or willful.

58. This ICRAA claim and the FCRA accuracy claim are asserted together in this action, with alternative relief where necessary. Plaintiff seeks no duplicative compensation for the same injury. Plaintiff does not assert § 1786.52 as a separate substantive cause of action and does not seek to circumvent its restrictions by maintaining a second action for the same act or omission.

## VII. THIRD CAUSE OF ACTION

**Failure to Provide Pre-Adverse-Action Materials - 15 U.S.C. § 1681b(b)(3)(A)**

**Against Amazon.com Services, LLC**

59. Plaintiff incorporates paragraphs 3-6, 8, 10-16, 19, 23-29, 34-42 and 45 insofar as they concern Amazon's procurement and use of screening information, removal of the particular employment opportunity, missing notices, and resulting injury.

60. Amazon procured Plaintiff's screening for employment purposes. On information and belief, it took adverse action based at least in part on a consumer report or qualifying communication of consumer-report information when it removed his selected July 28 training and start opportunity, for the factual reasons stated in paragraphs 26-27.

61. Before taking such action, § 1681b(b)(3)(A) required Amazon to provide Plaintiff a copy of the report and a written description of his FCRA rights. Amazon did neither before the shift removal. General screening-status messages were not those materials.

62. The omitted process caused Plaintiff to lose the opportunity to identify and correct

the inaccurate name being used in the screening, and to address the reporting information before Amazon acted on the particular opportunity. His later successful alias dispute demonstrates the specific correction he would have pursued; he does not rest this claim solely on an abstract right to receive paperwork.

63. Plaintiff suffered the employment loss and associated emotional harm alleged in paragraphs 38-42 to the extent caused by Amazon's report-based action without the required process. If Amazon acted solely because of incomplete screening or unavailable training capacity without using a consumer report, Plaintiff does not seek recovery under this count for that independent event.

64. Plaintiff seeks relief under § 1681n for knowing or reckless noncompliance as alleged in paragraph 45 and, alternatively, actual damages caused by negligent noncompliance under § 1681o, with recoverable costs and attorney's fees to the extent legally available. No separate private cause of action under § 1681m is asserted.

## VIII. FOURTH CAUSE OF ACTION

**Failure to Advise of Denial - Civil Code § 1786.40(a)**

**Against Amazon.com Services, LLC**

65. Plaintiff incorporates paragraphs 3-6, 8, 10-16, 23-29, 34-42 and 45 insofar as they concern Amazon's procurement of an investigative consumer report, the particular employment denial, missing advice, and resulting injury.

66. On information and belief, Amazon obtained investigative consumer reporting information about Plaintiff through Accurate in connection with the employment decision described above. Plaintiff alleges that the removal of the selected training and start opportunity denied that particular employment opportunity under circumstances in which

Amazon had obtained such a report.

67. Civil Code § 1786.40(a) required Amazon, as user, to advise Plaintiff of the denial and supply the name and address of the investigative consumer reporting agency making the report. Amazon did not provide that advice concerning the denial. A prior vendor-identification message or a portal instruction to select another shift did not advise Plaintiff that employment had been denied under those circumstances.

68. The failure prevented Plaintiff from promptly understanding and addressing the reporting basis for the lost opportunity and contributed to the uncertainty and emotional harm described above. Plaintiff subsequently obtained the report, disputed the false name, and secured its removal. He seeks only harm caused by the omitted advice and actionable denial, not wages caused by an unrelated scheduling event.

69. Plaintiff seeks the relief authorized by Civil Code § 1786.50(a), subject to § 1786.50(c) and § 1786.52, and punitive damages only if the evidence establishes grossly negligent or willful violation under § 1786.50(b). The state notice duty alleged here concerns advice following denial; it is not alleged to impose the federal pre-adverse-action report-and-rights duty.

## IX. PRAYER FOR RELIEF

Plaintiff requests judgment against each Defendant on the claims proved against that Defendant as follows:

A. Actual compensatory damages caused by the violations, including proven lost earnings, correction-related loss, and compensable emotional and reputational injury, in amounts determined at trial;

B. Statutory damages as authorized by 15 U.S.C. § 1681n for proven willful FCRA violations;

C. Individual statutory or actual damages, whichever is greater as provided by Civil Code § 1786.50(a), subject to the applicable statutory restrictions;

D. Punitive damages as authorized by 15 U.S.C. § 1681n(a)(2) and Civil Code § 1786.50(b) upon the required findings;

E. Recoverable costs and reasonable attorney's fees to the extent authorized and legally available, without an award for Plaintiff's own pro se time as attorney's fees;

F. Prejudgment and postjudgment interest as authorized by law; and

G. Such other relief as is legally available and consistent with the claims proved, without duplicative compensation for the same injury.

## X. JURY DEMAND

70. Under Federal Rule of Civil Procedure 38 and the Seventh Amendment, Plaintiff demands a jury trial on all issues so triable.

Dated: _____

Respectfully submitted,



BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per